

**FEDERAL MARITIME COMMISSION
DOCKET NO. 20-04**

**DIP SHIPPING COMPANY, LLC REVOCATION OF OCEAN TRANSPORTATION
INTERMEDIARY LICENSE NO. 018752**

**MOTION OF THE UNITED STATES DEPARTMENT OF JUSTICE, ANTITRUST DIVISION
TO FILE A SUBMISSION AS *AMICUS CURIAE***

The United States Department of Justice, Antitrust Division (the “Division”), pursuant to 46 C.F.R. § 502.73, respectfully moves the Commission for leave to file a submission as *amicus curiae* in the above-captioned proceeding. Alternatively, the Division, pursuant to 46 C.F.R. 502.68(c)(2)(ii), respectfully requests that as a federal government agency it be allowed permissive intervention in the matter based on its relevant expertise and direct involvement in the subject matter at issue. The Division has consulted with counsel for both the Federal Maritime Commission (“FMC”) Bureau of Enforcement and Dip Shipping Company, LLC (“Dip Shipping”), neither of which oppose the Division’s motion. The Division’s *amicus curiae* submission is filed conditionally with this motion, as provided by 46 CFR § 502.73(a), as Attachment 1.

Statement of Interest

This proceeding involves the ocean transportation intermediary (“OTI”) licensure of Dip Shipping. As the basis for the FMC’s intent to revoke Dip Shipping’s license, the Bureau of Enforcement cites the criminal guilty pleas of both Mr. Roberto Dip and Dip Shipping. (Dkt. No. 20-04, No. 4 (Bureau of Enforcement Submission of Materials Supporting Notice of

Revocation).) The Division, through the undersigned attorneys, both conducted the investigation of, and negotiated the criminal plea agreements with, Mr. Dip and Dip Shipping.

Pursuant to its plea agreement with Dip Shipping, filed as Attachment 2, the Division committed to “advise the appropriate officials of any governmental agency considering [suspension or debarment] of the fact, manner, and extent of the cooperation of the defendant and its related entities as a matter for that agency to consider before determining what action, if any, to take.” Attachment 2 at ¶18. Because OTI licensure revocation would have the same effect as suspension or debarment, to adhere to its commitments pursuant to the plea agreement, the Division in part seeks to apprise the Commission of Dip Shipping’s cooperation with its investigation.¹

Beyond this, however, the proposed submission is desirable to the Commission because it provides information uniquely in the Antitrust Division’s possession regarding the underlying criminal investigation and resolution with Dip Shipping. Additionally, the Commission’s action in this matter may impact the plea agreement as accepted by the federal district court, and interfere with Dip Shipping’s ability to pay the criminal fine that has been imposed on it. It is desirable that the Commission understand fully these legal and policy issues before rendering its decision.

In the alternative, should the Commission receive this submission as a motion for permissive intervention, the Division submits that the basis for the Bureau of Enforcement’s

¹ The Antitrust Division does not take a position in the outcome of this matter. It therefore does not seek leave to file its *amicus curiae* submission in support of either Dip Shipping or the Bureau of Enforcement. Nonetheless, this filing is in part prompted by the Division’s obligations to Dip Shipping under the plea agreement, so it is timely as filed within seven days of Dip Shipping’s filing in this matter. 46 C.F.R. § 502.73(c). To the extent the Commission disagrees with this assessment, the Division further respectfully requests the Commission to grant leave for a later filing on cause shown. *Id.*

proposed revocation flows directly from the Division's investigation, rendering its expertise relevant to an issue involved in the proceeding and likely to assist the Commission in its consideration of this matter. 46 C.F.R. 502.68(c)(ii). Further, the Division's limited intervention will not unduly delay or expand the scope of the proceeding, but it will assist the Commission in compiling a more complete—and therefore more sound—record on which to base its decision. The Division's submission is limited to issues that are neither on the record in this matter nor in dispute.

For the foregoing reasons, the Antitrust Division moves that the Commission grant leave to file as *amicus curiae* with the Commission the submission included conditionally as Attachment 1, or in the alternative, grant leave to the Division for permissive intervention to file the same submission.

Respectfully submitted,

/s/

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